		Here, LC § 558.1 provides that certain persons "may be held liable as the employer for" specified wage-and-hour violations. Maresch and Lim-Valle may be treated as employers for purposes of some of Plaintiff's claims. Under *Boucher*, CCL's bankruptcy has no effect on claims against Maresch and Lim-Valle in their capacity as employers under LC § 558.1. The motion is therefore granted. However, the Court has serious reservations about future proceedings. Plaintiff can likely prove Maresch and Lim-Valle's managerial and ownership roles without implicating any bankruptcy issues. But how does Plaintiff intend to prove the class wage-and-hour claims? Under LC § 558.1, Maresch and Lim-Valle are only liable to the class if the class suffered wage-and-hour violations. For example, because of the automatic stay, Plaintiff can't propound a request for production seeking all time and pay records for the class, because those are the property of the bankruptcy trustee. Moreover, there are concerns about conflicting judgments. Again, Maresch and Lim-Valle are only liable to the class to the extent wage-and-hour violations occurred. Because CCL is in bankruptcy, any judgment in favor of the class or even the individual plaintiff can't bind CCL. As a result, to the extent the class's claims against CCL survive bankruptcy, it's possible the trier of fact could find Maresch and Lim-Valle are liable for wage-and-hour violations, but a subsequent trier of fact could find CCL not liable because no such violations occurred. Such a result would be absurd and should be avoided.
9	**R.V. vs. The Regents of the University of California** **2025-01493422**	**Defendant's Demurrer to Complaint** The Regents of the University of California ("University") demur to the negligence claims in the operative complaints of plaintiffs Jane Doe R.V. and Jane Doe M.M., which are consolidated for pretrial purposes. As to R.V., the demurrer is OVERRULED AS MOOT because R.V. has dismissed her claims against the University with prejudice. (ROA 145.) As to M.M., the demurrer to the First Amended Complaint (FAC) is SUSTAINED WITHOUT LEAVE TO AMEND. **<u>GROUNDS FOR RULING</u>** Initially, the Court notes that M.M. contests only one of the several arguments raised by the University in its demurrer: she contends she has adequately alleged the University's notice of Hoefs' misconduct. The Court accordingly treats the University's other arguments as conceded. As to notice, M.M. alleges that she treated with Hoefs at UCI Medical Center from 1998 to 2001. She stopped treatment at that time "following a significant improvement in her medical condition." (*M.M.* FAC, ¶ 31.) M.M. also alleges that complaints about Hoefs' behavior were lodged "as early as 2016." (*M.M.* FAC, ¶ 41.) Complaints made in 2016 cannot possibly have put the University on notice of Hoefs' conduct when M.M. treated at the University from 1998 to 2001. In opposition, M.M. contends the reference to 2016 was merely illustrative, not the earliest possible date of notice. This argument ignores the language of the pleading, which says complaints were lodged "as early as 2016." The balance of M.M.'s opposition is directed at the University's conduct surrounding a potential Second Amended Complaint. This argument is irrelevant to whether the FAC is subject to demurrer. Either M.M. has stated facts sufficient to constitute a cause of action, or she has not. For these reasons, the demurrer is sustained. Given Plaintiff's admissions as to the dates of treatment at the University and when the University arguably was on notice of Hoefs' misconduct, the Court does not see how the claims against the University can survive. Indeed, Plaintiff's proposed Second Amended Complaint does not include any amended allegations that will cure

		the notice deficiency. (Plaintiff's Opp., Exh. E) Accordingly, the Court's strong inclination is to deny leave to amend.
10	**Roe 26 A.B. vs. Anaheim Union High School District** **2025-01503960**	**Gizem Gures's Motion to Be Relieved as Counsel of Record** **Motion to Be Relieved as Counsel of Record** Slater, Slater & Schulman LLP moves to be relieved as counsel for Plaintiffs Jane Roe 27 M.M. and Jane Roe 33 B.G. The motion is GRANTED. Counsel has met the requirements of CCP § 284 and CRC 3.1362. The two orders will be effective upon the filing of proof of service on the clients.
11	**Asset Management Consultants, Inc. vs. Catlin Specialty Insurance Company** **2015-00824125**	**Defendant's Demurrer to Complaint** **Defendant's Motion to Strike Complaint** **CATLIN SPECIALTY INSURANCE'S DEMURRER TO THE SECOND AMENDED COMPLAINT (2AC)** Catlin's demurrer to the Basso Plaintiffs' sixth cause of action (fraud) in the 2AC is SUSTAINED WITHOUT LEAVE TO AMEND. The gist of the sixth cause of action is that Catlin (and insurance broker Brown and Riding Insurance Services, Inc.) fraudulently concealed the fact that, contrary to Plaintiffs' instructions, the insurance policy at issue included a self-insured retention of $150,000 and excluded SLB from coverage. The Court previously sustained Catlin's demurrer to this claim. In the First Amended Complaint, the Basso Plaintiffs pled they received letters in July and November 2013 informing them of the SIR and the exclusion of SLB. The FAC was filed in July 2018, more than three years later, and the fraud claim did not relate back to the original complaint. As a result, it was untimely. The Basso Plaintiffs were granted leave to amend. The Basso Plaintiffs now argue the delayed discovery rule should toll accrual of the fraud claim. In the 2AC, the Basso Plaintiffs continue to admit that they received letters about the SIR and the exclusion of SLB in July and November 2013. However, they allege that they understood these letters to be mistakes or errors. With respect to the July 2013 letter, they allege: "Because the Policy did not actually reference any such retention and Plaintiffs had not been provided with any endorsement or other information suggesting that there was, in fact, a retention, this comment by Linville appeared to be a simple mistake and did not, in any way, suggest that Catlin and Brown were attempting to secretly modify the policy to add in a retention without the knowledge of Plaintiffs. Plaintiffs did not first learn of this was not merely a typographical error but was, in fact, part of a scheme to create the illusion of a retention that did not actually exist until it was disclosed in discovery in this litigation less than three years before first alleging this cause of action." (2AC ¶ 332.) Similarly, with respect to the November 2013 letter, they allege: "In fact, because Plaintiffs understood that SLB was a named insured under the Policy at the time they paid their premium, they knew that the endorsement [deleting SLB] was an error and had not be[en] agreed to by the parties. Because they were unaware of the secret discussions between Brown and Catlin, they were unaware that this purported endorsement was actually a part of a long-standing fraud until those discussions were disclosed in discovery in this litigation less than three years before first alleging this cause of action." (2AC ¶ 355.) "An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. . . . In other words, plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the